



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
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9700.01 - **ADVERTISING AND COMMERCIAL ACTIVITIES**

The purpose of this policy is to provide guidelines for the appropriate and inappropriate use of advertising or promoting of commercial products or services to students and parents in the schools.

"Advertising" comes in many different categories and forums and is defined as an oral, written or graphic statement made by the producer, manufacturer, or seller of products, equipment, or services which calls for the public's attention to arouse a desire to buy, use or patronize the product, equipment, or services. This includes the visible promotion of product logos for other than identification purposes. Brand names, trademarks, logos or tags for product or service identification purposes are not considered advertising.

The Board of Education may permit advertising in school district facilities or on school district property in the following categories or forums in accordance with the guidelines set forth herein:

A. Product Sales (in accordance with Policy 8510 – Wellness):

1. product sales benefiting a district, school or student activity (e.g., the sale of beverages or food within schools);
2. ~~exclusive agreements between the District and businesses that provide the businesses with the exclusive right to sell or promote their products or services in the schools (e.g. pouring rights contracts with soda companies);~~
3. fundraising activities (e.g., short term sales of gift wrap, cookies, candy, etc.) to benefit a specific student population, club or activity where the school receives a share of the profits;

B. Direct Advertising/Appropriation of Space:

1. signage and billboards in schools and school facilities;
2. corporate logos or brand names on school equipment (e.g., marquees, message boards, or score boards);
3. ads, corporate logos, or brand names on book covers, student assignment books, or posters;
4. ads in school publications (newspapers and yearbooks and event programs);
5. ~~media based electronic advertising (e.g., Internet or web based sponsorship);~~
6. ~~free samples (e.g., of food or personal hygiene products).~~

C. Indirect Advertising:

1. corporate-sponsored instructional or educational materials, teacher training, contests, incentives, grants, or gifts;
2. the Board approves the use of instructional materials developed by commercial organizations, such as films and videos, only if the education value of the materials outweighs their commercial nature.

The films or ~~material~~ materials shall be carefully evaluated by the school principal/designee for classroom use to determine whether the films or materials contain undesirable propaganda and are in compliance with the guidelines as set forth above.

It is further the policy of the Board that its name, students, staff members and District facilities shall not be used for any commercial advertising or otherwise promoting the interests of any commercial, political, nonprofit or other non-school agency or organization, public or private, without the approval of the Board or its designee.

Any commercial advertising shall be structured in accordance with the General Advertising Guidelines set forth below.

General Advertising Guidelines

The following guidelines shall be followed with respect to any form of advertising on school grounds or school property :

- A. ~~When~~ When working together, schools and businesses must protect educational values. All commercial or corporate involvement should be consistent with the District's educational standards and goals.
 - B. ~~Any~~ Any advertising that may become a permanent or semi-permanent part of a school requires prior approval of the Board.
- A. The Board reserves the right to consider requests for advertising in the schools, on a case-by-case basis.
 - B. No advertisement shall promote or contain references to alcohol, tobacco, drugs, drug paraphernalia, weapons, or lewd, vulgar, obscene, pornographic or illegal materials or activities, gambling, violence, hatred, sexual conduct or sexually explicit material, X or R rated movies, or gambling aids.
 - C. No advertisement shall promote any specific religion or religious, ethnic or racial group and shall be non-proselytizing.
 - D. No advertisement may contain libelous material.
 - E. No advertisement may be approved which would tend to create a substantial disruption in the school environment or inhibit the functioning of any school.
 - F. No advertisement shall be false, misleading or deceptive.
 - G. To the extent feasible, each ~~Each~~ advertisement must be reviewed in advance for age appropriateness.
 - H. Advertisements may be rejected by the school district if determined to be inconsistent with the educational objectives of the school district, inappropriate, or inconsistent with the guidelines set forth in this policy.
 - I. All corporate support or activity must be consistent with the Board's policies prohibiting discrimination on the basis of race, color, national origin, religion, sex, disability, or age, and must be age-appropriate.
 - J. Students shall not be required to advertise a product, service, company or industry.
 - K. Advertising will not be permitted on the outside or the inside of school buses.
 - L. The Superintendent or designee is responsible for screening all advertising.

M. The Superintendent or designee may require that samples of advertising be made available for inspection.

N. The inclusion of advertisements in school district publications, in school district facilities, or on ~~school district~~ **School District** property does not constitute or imply approval and/or endorsement of any product, service, organization, or activity.

Final discretion regarding whether to advertise and the content and value of the materials will be with the Board.

O. All contracts in excess of \$5,000 or as otherwise provided by law shall be submitted to the Board of consideration.

In addition to the guidelines set forth in this policy, the Superintendent shall prepare administrative guidelines addressing the Criteria for Commercial Messages and the process by which advertising shall be accomplished. (See At 9700B.)

Accounting

Advertising revenues must be properly reported and accounted for.

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